

This Data Processing Agreement ["Agreement"], is entered into this ____ Day of ____, 2025 by and between

Bajaj Auto Limited, a Company registered under the Companies Act, 1956, having its principal office at Mumbai Pune Road, Akurdi, Pune 411 035, India, hereinafter referred to as "BAJAJ" [which expression shall unless repugnant to the context or contrary to the meaning thereof be deemed to mean and include its successors in business and interests and lawful assigns] of the One Part,

And

M/s. _____, duly organized and existing under the Laws of _____ and having its registered office at _____ hereinafter referred to as "_____" [which expression shall unless repugnant to the context or contrary to the meaning thereof be deemed to mean and include its successors in business and interests and lawful assigns] of the Other Part.

1. Definitions

- 1.1. **'Personally Identifiable Information'**: Personally Identifiable Information (PII) is any information that can be used to identify an individual.
- 1.2. **'Data Subject'**: The individual to whom the PII data pertains.
- 1.3. **'Controller'**: means Bajaj Auto Limited.
- 1.4. **'Processor'**: means a natural or legal person, public authority, agency, or other body which processes PII data on behalf of the Controller, with full knowledge of the obligations.
- 1.5. **'Processing'**: means any operation or set of operations which is performed on general data/personal data or on sets of personal data by any means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure, or destruction required for the purpose of this Agreement.
- 1.6. **'Data breach'**: means a breach of security leading to the accidental or unlawful destruction, loss, alteration, unauthorized disclosure of, or access to, personal data transmitted, stored, or otherwise processed.
- 1.7. **'Applicable data protection law'**: means any applicable data protection law , privacy and cybersecurity laws or regulations.
- 1.8. **'Regulatory requirements'**: means the legal obligations and standards as per the Applicable data protection law that Processor must follow to ensure the protection of personal data and the privacy rights of individuals.
- 1.9. **'Principal Agreement'**: refers to the main agreement that govern the relationship between the parties.

2. Scope and Purpose

The Processor shall process PII data only as instructed by the Controller under the Principal Agreement.

3. Processor Obligations

- 3.1 The Processor shall comply with its respective obligations under the Applicable data protection law in processing of PII and shall take any precautions and measure in line with the law.
- 3.2 The Processor guarantees to implement appropriate technical and organizational measures in a manner that the processing will meet the requirements of the Applicable data protection law, rules and necessary regulations and ensure the protection of the rights of the Data Subject.
- 3.3 The Processor shall not engage any Sub Processor without prior written authorization of the Controller.
- 3.4 The Processor shall take steps to ensure that any person acting under the authority of the Processor who has access to PII data should process in-line with the purpose of the Principal Agreement.
- 3.5 The Processor shall ensure that any sub-Processor is bound by all obligations equivalent to those of the Processor.
- 3.6 The Processor shall be liable for any breach of obligations or non-compliance of the Applicable data protection law.
- 3.7 The Processor shall notify the Controller without any delay after becoming aware of a PII data breach for legal compliances, if any.
- 3.8 For the Purpose of Processing of Data on behalf of the Controller, the Processor shall implement appropriate data protection policies and privacy framework.

4. Sub processing

- 4.1 The Processor shall not engage any Sub Processor without prior written authorization of the Controller.
- 4.2 The Sub Processor shall have all obligations of the Processor and the Processor shall be liable for any breach by the Sub Processor.

5. International Transfers

- 5.1 PII data shall not be transferred outside the jurisdiction without necessary legal compliances.
- 5.2 In case of any conflict of jurisdictions, the stricter law shall prevail.
- 5.3 The Processor shall take all measures required pursuant to the respective country privacy regulation and implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk.

6. Security Measures

- 6.1 The Processor shall implement appropriate technical and organizational measures to safeguard PII data in compliances with law.

7. Data breach Notification

- 7.1 In the case of a data breach, the Processor shall without any delay shall notify the data breach to the Controller and authority where privacy law to meet the legal requirement.

8. Data Retention and Deletion

The Processor shall at the termination or expiry of the Principal Agreement or at the instructions of the Controller shall delete or return all the PII data and delete existing copies unless the respective country privacy regulation requires storage of the PII data in secured manner. The data retained after the expiry or termination of the Principal Agreement shall be subject to the confidentiality terms as agreed between the Parties.

10. Audit Rights

10.1 The Controller has the right to audit the Processor's compliance upon providing reasonable notice.

11. Liability and Indemnification

11.1 The Processor shall indemnify the Controller and its officials against all legal implications, cost, expenses (including legal and other professional fees and expenses), losses, damages, penalty for any privacy breach and other liabilities of whatever nature whether contractual, tortious or otherwise suffered or incurred by the Controller and arising out of or in connection with any breach, non-performance and non-compliance by the Processor or any Sub Processor under this agreement.

12. Governing Law and Dispute Resolution

12.1 This agreement shall be governed by the laws of India.

Schedules

Schedule A: Technical and Organizational measures to be adopted by Processor

Sr. No.	Measure	Overview
1	Pseudonymization and Encryption of Data	Protecting personal data by making it unreadable without additional information (e.g., encryption).
2	Ensuring Confidentiality, Integrity, Availability, and Resilience of Systems	Safeguarding the ongoing confidentiality, integrity, and availability of data processing systems and services.
3	Restoration of Availability	Implementing measures to restore access to personal data in the event of a technical or physical incident, such as through regular backups.
4	Regular Testing and Evaluation	Conducting regular testing, assessments, and evaluations of the effectiveness of security measures to ensure data protection.

5	Access Control	Restricting access to personal data to authorized personnel only, based on their role and necessity.
6	Data Minimization	Ensuring only the data necessary for the specific purpose is processed.
7	Secure Data Disposal	Ensuring secure deletion or destruction of data when it is no longer needed.
8	Audit and Monitoring	Maintaining logs, audits, and monitoring systems to identify and mitigate security risks.
9	Employee Training	Ensuring that employees involved in data processing are aware of data protection regulations and follow them.
10	Anonymization	Applying techniques to render data anonymous where possible, reducing risk to Data Subjects.

Schedule C: Sub Processor Details {If applicable}

For Bajaj Auto Limited	For _____
Name	Name
Designation	Designation